

Application to File New Litigation or New Documents by Vexatious Litigant

Applicant's Name <i>(List your full name as the vexatious litigant):</i> 	Case Number <i>(List the case number if requesting to file new documents in an existing case. Otherwise, leave blank):</i> 		
Names of All Other Parties in the Case <i>(List all other parties in existing case; if requesting new litigation, list all other parties if application is granted):</i> 			
Filed in <i>(Check ☒ the court where you will file your application and complete any blank spaces):</i> <table style="width: 100%; border: none;"> <tr> <td style="width: 50%; vertical-align: top; padding: 5px;"> ☐ Municipal Court, (City) _____ ☐ N.D. Small Claims Court, _____ County ☐ N.D. District Court, _____ County </td> <td style="width: 50%; vertical-align: top; padding: 5px;"> ☐ N.D. Supreme Court ☐ Disciplinary Board ☐ Judicial Conduct Commission </td> </tr> </table>		☐ Municipal Court , (City) _____ ☐ N.D. Small Claims Court , _____ County ☐ N.D. District Court , _____ County	☐ N.D. Supreme Court ☐ Disciplinary Board ☐ Judicial Conduct Commission
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This form must be used by a self-represented individual who is:

- 1. Found to be a vexatious litigant by a North Dakota state court, including a Municipal Court, a Small Claims Court, a District Court, the Disciplinary Board, the Judicial Conduct Commission, and the Supreme Court; and***
- 2. Subject to a pre-filing order.***

As a vexatious litigant representing yourself, you're required to apply in writing to get court approval before you can file any documents in an existing case or file new litigation.

File this completed, dated, and signed application form, and the documents you're requesting to file as follows:

- If you're applying for permission to file new documents in your existing case, file with the court where the existing case is filed. Use the same case number. This application form must be filed separately from the documents you're requesting to file.***
- If you're applying for permission to appeal a court's decision to the Supreme Court, or file a petition for a writ with the Supreme Court, file with the Office of the Clerk of the Supreme Court. This application form must be filed separately from the documents you're requesting to file.***

(Instructions continue on next page.)

- ***If you're applying for permission to start new litigation, file with the court in the district where you plan to file the new case. If the filing is granted, a new case number is assigned. This application form must be filed separately from the documents you're requesting to file.***
- ***Self-represented parties who have been declared vexatious litigants aren't allowed to file documents electronically and won't be provided a user ID and password to access the system. A self-represented vexatious litigant must file in paper format in compliance with all other Rules of Court.***

After your application is filed, a judge or justice of the court may allow you to file your new documents, or file a new case, **only if** it appears that your document(s) or new case have merit and aren't being filed for the purpose of harassment or delay.

1. My name is (full name) _____.

2. I have been determined to be a vexatious litigant as defined by Rule 58 of the North Dakota Supreme Court Administrative Rules.

3. I must apply for prior court approval to file any new documents in an existing case or to file new litigation.

4. I am applying to file (☒ choose one):

☐ New documents in an existing case. The case number is _____.

☐ New litigation. New litigation means any civil or disciplinary action or proceeding, including any appeal from an administrative agency, any review of a referee order by a North Dakota state district court, and any appeal to the North Dakota Supreme Court.

5. I request approval from a judge of the above court to file the following document(s).

The document(s) are submitted with this application (**on the next page**, list the name of each document(s) you're applying for permission to file. The document(s) must be submitted at the same time as your application):

6. The new filing has merit because (*write a brief summary of the facts on which your new filing is based; the harm you believe you've suffered or will suffer; and the remedy or resolution you're seeking*):

7. The new filing is not being filed to harass or cause a delay because (*write your reasons*):

8. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Application is true and correct.

Signed on _____ (*date*) in _____ (*city*),
_____ (*county*), _____ (*state*), _____ (*country*).

Signature

Printed Name

Address

City, State, Zip Code

Telephone Number

Email Address